



COMMONWEALTH OF AUSTRALIA
Competition and Consumer Act 2010 (Cth)

IN THE AUSTRALIAN COMPETITION TRIBUNAL

File No: ACT 1 of 2026

Re: Application for review of a determination made by the Australian
Competition and Consumer Commission under subsection 51ABZE(1) of the
Competition and Consumer Act 2010 (Cth)

Applicant: Coles Supermarkets Australia Pty Ltd

DIRECTIONS

TRIBUNAL: Justice O'Bryan (President)

DATE: 21 August 2026

WHERE MADE: Melbourne

THE TRIBUNAL DIRECTS BY CONSENT THAT:

Definitions used in these directions

1. The following defined terms apply for the purposes of these Orders:
 - (a) **ACCC** means the Australian Competition and Consumer Commission.
 - (b) **Confidentiality Regime** means the confidentiality regime annexed to the directions of the Tribunal made in this proceeding on 21 July 2026.
 - (c) **Participant** means:
 - (i) the applicant for review (Coles Supermarkets Australia Pty Ltd); and
 - (ii) the intervener in this proceeding (O'Connor Fresh Pty Ltd ATF O'Connor Fresh Trust).
 - (d) **SKU Analysis Spreadsheets** means the documents listed in the Annexure to these directions.

Access to SKU Analysis Spreadsheets

2. Subject to directions 3 to 6 below, access to the SKU Analysis Spreadsheets remains governed by the Confidentiality Regime.
3. The SKU Analysis Spreadsheets be redacted in respect of the following information prior to disclosure to internal solicitors employed by a Participant who are directly involved in the proceeding pursuant to paragraph 3 of the Confidentiality Regime:
 - (a) columns M to Q of the table in the worksheet entitled “Coles” and “Standalone_Coles” respectively (being the columns containing “Spudshed” in their name); and
 - (b) the graph in that worksheet entitled “Coles top 100 and corresponding matched products”.
4. The redacted versions of the SKU Analysis Spreadsheets referred to in direction 3 above contain Confidential Information (but not Highly Confidential Information and are not Highly Confidential Documents) for the purposes of:
 - (a) the Confidentiality Regime; and
 - (b) direction 11 made on 10 August 2026 (regarding the hearing book).
5. The unredacted versions of the SKU Analysis Spreadsheets are Highly Confidential Documents for the purposes of:
 - (a) the Confidentiality Regime; and
 - (b) direction 11 made on 10 August 2026 (regarding the hearing book).
6. When serving documents pursuant to direction 5(c) made by the Tribunal on 13 August 2026, the ACCC will serve both:
 - (a) a version redacted in accordance with direction 3 above; and
 - (b) an unredacted version.
7. There be liberty to apply.

Date: 21 August 2026

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Registrar

Australian Competition Tribunal



Annexure 1 – Highly Confidential Documents



Document ID	Document Title	Confidentiality Claimant
01068.022.041.0178	Coles top 100 SKUs revenue analysis - final determination.xlsx	Coles Supermarkets Australia Pty Ltd O'Connor IGA Woolworths Spudshed
01068.001.038.0415	Coles Kalgoorlie - CONFIDENTIAL - Consultation - Top 100 SKU - revenue analysis - May 2026(31959328.1).xlsx	Coles Supermarkets Australia Pty Ltd O'Connor IGA Woolworths Spudshed